

stay permitted under district court's inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 ["Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency"].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court would exercise its inherent authority to issue a stay.

The Arbitration Agreement expressly provides that it is governed by the Federal Arbitration Act. (McMullin Decl. ¶ 6, Ex. A at p. 7.) Under the Federal Arbitration Act, 9 U.S.C. section 1 et seq. (FAA), the court's only option in these circumstances is to stay the court proceeding and compel the arbitration. (*Rodriguez v. Am. Techs., Inc.* (2006) 136 Cal.App.4th 1110, 1115.)

Conclusion

Based on the analysis above, Defendant Mountain West's Motion to Compel Arbitration of Plaintiff's individual claims are **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

A case management conference is scheduled for November 20, 2026 at 8:30 a.m. in Department 16 to follow-up on the status of arbitration. The Parties are ordered to appear remotely via Zoom and to prepare a case management conference statement advising on the status of arbitration. If arbitration is not concluded by that date, the parties can prepare a stipulation to continue the CMC to a future date.

17. 9:00 AM CASE NUMBER: C25-02721
CASE NAME: LUIS ARMENTA GOMEZ VS. PREYANKA KANDA
HEARING ON DEMURRER TO: CROSS-COMPLAINT
FILED BY: ARMENTA GOMEZ, LUIS RICARDO
TENTATIVE RULING:

Plaintiffs and Cross-Defendants Luis Ricardo Armenta Gomez ("Gomez"), Jesus Villa Cuevas ("Cuevas"), and Gloria Villa ("Villa" altogether, "Cross-Defendants") bring this demurrer to the cross-complaint ("Cross-Complaint") of Defendant and Cross-Complainant Preyanka Kanda ("Kanda" or "Cross-Complainant"). Cross-Defendants argue that the sole cause of action alleged in the Cross-Complaint, imposition of a resulting trust, fails to state sufficient facts to constitute a cause of action.

For the reasons discussed below, Cross-Defendants' demurrer to the Cross-Complaint's claim for imposition of a resulting trust is **OVERRULED** as to Cross-Defendants Cuevas and Villa and is **SUSTAINED** as to Cross-Defendant Gomez, with leave to amend.

Meet and Confer

The meet and confer requirement has been satisfied. (Gabriella Sembenini-Tato Decl., ¶¶ 6-8, Exhs. 3-4; Code Civ. Proc., § 430.41, subd. (a)(3)(B).) Cross-Complainant asserts that Cross-Defendants did not satisfy the meet and confer requirement. (Opposition, p. 1:17.) However, one way to satisfy the requirement is to show that the party subject to the demurrer failed to respond to a meet and confer request. (Code Civ. Proc., § 430.41, subd. (a)(3)(B).) Here, on December 22, 2025, Cross-Defendants

requested to meet and confer and it appears that Cross-Complainant failed to respond. (Gabriella Sembenini-Tato Decl., ¶¶ 6-8, Exhs. 3-4.) That the meet and confer effort took place the week of Christmas appears relevant, but there is no representation that counsel was out of the office that week and Cross-Complainant has fully briefed the Opposition. The Court cannot overrule a demurrer based on a failure to meet and confer, so the Court will proceed to analyze Cross-Defendants' demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4)). ("A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.")

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) "However, leave to amend should not be granted where, in all probability, amendment would be futile." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background: Facts Alleged in Cross-Complaint & Complaint

Cross-Complainant and Gomez are former romantic partners. (Complaint, ¶ 12.) Around July 15, 2022, Cross-Complainant and Gomez acquired an interest in real property located at 509 Parker Avenue, Rodeo, CA 94572 (the "Property"). (Cross-Complaint, ¶¶ 6,8.) Around July 6, 2022, Cross-Complainant paid \$25,500 of her own money towards the down-payment for the Property. (*Id.*, at ¶ 9.) Around July 22, 2025, Cross-Complainant paid \$62,000 of her own money towards the down-payment for the Property. (*Id.*, at ¶ 10.) Also, around July of 2025, Gomez paid \$12,998.64 of his own money towards the down payment on the Property. (*Id.*, at ¶ 11.) The balance of the purchase price was secured by a purchase money first deed of trust that was recorded on July 22, 2022. (*Id.*, at ¶ 12.) Cross-defendants Cuevas and Villa co-signed loan documents in connection with the purchase of the Property, solely to assist with financing, and there was no intent for them to hold any legal, equitable, or beneficial interest in the Property. (*Id.*, at ¶ 13.) The entire down payment for the Property was paid exclusively by Cross-Complainant and Gomez. (*Id.*, at ¶ 15.) Cross-Complainant contributed a total sum of \$87,500.00 towards the down payment, and Gomez contributed a total sum of \$12,998.64 towards the down payment. (*Ibid.*) From July 2022, until August of 2024, Cross-

Complainant and Gomez shared the monthly mortgage payments equally. (*Id.*, at ¶ 16.) Neither Cuevas nor Villa made any financial contributions toward the down payment, purchase price, or any other expense related to the Property nor have either of them ever resided at or occupied the subject Property. (*Id.*, at ¶ 14.) Subsequent to these events taking place, the parties' relationship deteriorated. (Complaint, ¶ 16.)

On or about July 31, 2024, Gomez voluntarily vacated the Property and informed Cross-Complainant that he, along with Cuevas and Villa, irrevocably renounced and relinquished any and all right, title, interest, claim, obligation, or liability, whether legal or equitable, in or to the Property. (Cross-Complaint, ¶ 18.) Thus, since September 2024, to the present, Cross-Complainant has solely paid all expenses associated with the Property, including, but not limited to, the monthly mortgage payment, property taxes, homeowner's insurance, utilities, maintenance, repairs and improvements. (*Id.*, at ¶ 17.) Additionally, Cross-Complainant has been solely responsible for the general upkeep and non-financial obligations associated with maintaining the Property. (*Ibid.*)

On September 23, 2025, Cross-Defendants filed a lawsuit for partition by sale as they each seek to recover the value of their joint tenancy ownership in the Property. (Complaint, pp. 1-6.) On November 18, 2025, Cross-Complainant filed the Cross-Complaint at issue, asserting a single claim for imposition of a resulting trust. (Cross-Complaint, pp. 1-7.)

Discussion

Cross-Defendants argue that the Cross-Complaint fails because the sole cause of action, imposition of a resulting trust, is a remedy and not a cause of action. (MPA ISO Demurrer, pp. 2-4.) Cross-Defendants argue that a resulting trust is an intention-enforcing trust and that a demurrer must be sustained where no such common intent was alleged. (*Id.*, at p. 3.) "The Plaintiffs clearly had no intent to enter into an agreement that would give rise to a resulting trust." (*Ibid.*)

Cross-Complainant argues that the three appellate cases relied on by Cross-Defendants are distinguishable and that only one of them involved a resulting trust. (Opposition, pp. 4-6.) Cross-Complainant further argues that she has adequately alleged the elements of a resulting trust, and that factual disputes cannot be resolved on demurrer. (Opposition, pp. 7-9.)

On reply, Cross-Defendants argue that Cross-Complainant has not adequately pled the elements of a resulting trust claim. (Reply, pp. 1-2.) They also assert that there is no resulting trust here because Cross-Defendants had no intent to enter into such an agreement and there is no written agreement or shared intent to form a resulting trust. (*Id.*, at p. 2.) Finally, they repeat their argument that a resulting trust is a remedy and not a standalone cause of action. (*Id.*, at pp. 2-3.)

Resulting Trust

In this case, Cross-Defendants Cuevas and Villa co-signed loan documents for their son and his girlfriend in order to assist them with financing. (Cross-Complaint, ¶ 13.) They did not intend to hold any legal, equitable, or beneficial interest in the Property. (*Ibid.*) They have not made any payments towards the property and have never resided there. (Complaint, pp. 1-5; Cross-Complaint, ¶ 14.) Now, subsequent to their son and Cross-Complainant breaking up, defendants Cuevas and Villa, along

with their son, have filed an action for partition so that they can realize their alleged combined 75% interest in the Property. Cross-Complainant has filed a cross-complaint asserting a claim for imposition of a resulting trust, in an effort to protect her interest in the Property for which she has made the majority of payments.

“A resulting trust differs from an express trust chiefly in that (1) it arises by operation of law, without an expressed intent, and (2) the resulting trustee ordinarily has no duty other than to transfer the property to the person entitled. [Citations.]” (*In re Marriage of Ruelas* (2007) 154 Cal.App.4th 339, 342.) “Ordinarily a resulting trust arises in favor of the payor of the purchase price of the property where the purchase price, or a part thereof, is paid by one person and the title is taken in the name of another. The trust arises because it is the natural presumption in such a case that it was their intention that the ostensible purchaser should acquire and hold the property for the one with whose means it was acquired.” (*Martin v. Kehl* (1983) 145 Cal.App.3d 228, 238.)

“A resulting trust arises from a transfer of property under circumstances showing that the transferee was not intended to take the beneficial interest . . . [para.] It has been termed an ‘intention-enforcing’ trust, to distinguish it from the other type of implied trust, the constructive or ‘fraud-rectifying’ trust. The resulting trust carries out the inferred intent of the parties; the constructive trust defeats or prevents the wrongful act of one of them.’ ” (*American Motorists Ins. Co. v. Cowan* (1982) 127 Cal.App.3d 875, 884-885.)

Cause of Action versus Remedy

Cross-Defendants rely on a court of appeal case, *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 76, for its proposition that “[i]n their third amended complaint appellants alleged, as causes of action, a resulting trust and a constructive trust. But neither is a cause of action (5 Witkin, Cal. Procedure (3d ed. 1985) Pleading, §§ 788-791, pp. 232-235), only a remedy.” (MPA ISO Demurrer, p. 2.) However, this view is not unanimous in California courts, as even the California Supreme Court has stated what is needed to state a **cause of action** for resulting trust. (*Altramano v. Swan* (1942) 20 Cal.2d 622, 628 [“To state a cause of action . . . upon the theory of a resulting trust, one must allege either that he intended to create a trust or that he intended that the wife should not have the beneficial interest in the property.”].) Additionally, there are California Court of Appeal holdings that a resulting trust can be a cause of action. (*Fidelity National Title Ins. Co. v. Schroeder* (2009) 179 Cal.App.4th 834, 850 [“Allowing the judgment creditor to assert a resulting trust cause of action in this context would simply provide the mechanism for doing so under a well-established legal theory. In view of these several considerations, we . . . hold that Fidelity stated a cause of action for a resulting trust.”]; see also *Estate of Yool* (2007) 151 Cal.App.4th 867 [establishment of a resulting trust may be a cause of action, rather than merely a remedy].)

Here, in light of the split of authority in the Courts of Appeal and the California Supreme Court’s view being on the side of there being a cause of action for resulting trust, the Court will not sustain Cross-Defendants’ demurrer on this basis.

Elements of Resulting Trust Claim

Cross-Defendants also argue that Cross-Complainant has not stated sufficient facts to constitute a

cause of action for resulting trust. (MPA ISO Demurrer, p. 3:4-26; Reply, pp. 1:10-2:20.) They argue that there is no shared intent to create a resulting trust in this matter and that Cross-Defendants had no such intent. (MPA ISO Demurrer, p. 3.) They argue that Cross-Complainant's name is on the title, which means that she does not qualify for a resulting trust to be created. (*Ibid.*) Cross-Complainant argues that she has properly pled a cause of action for a resulting trust. (Opposition, pp. 7-8.)

"Ordinarily a resulting trust arises in favor of the payor of the purchase price of the property where the purchase price, or a part thereof, is paid by one person and the title is taken in the name of another." (*Martin v. Kehl* (1983) 145 Cal.App.3d 228, 238.) Here, the Cross-Complaint alleges that Cross-Complainant and Gomez made payments towards the purchase price of the Property. (Cross-Complaint, ¶¶ 9-11, 15, 16, 17.) The Cross-Complaint also alleges that neither Cuevas nor Villa, made any financial contributions towards the down payment, purchase price, or any other expense related to the Property, but that they were put on the title "solely to assist with financing" and that there was no intent for them to hold any legal, equitable, or beneficial interest in the Property. (*Id.*, at ¶¶ 13-14.) These allegations satisfy the requirements that the purchase price, or part thereof, is paid by one person and the title is taken in the name of another. When these allegations are combined with the maxim that "at the demurrer stage the complaint must be construed in the light most favorable to the plaintiff," the court finds that a resulting trust has been sufficiently pled, at least with respect to Cross-Defendants Cuevas and Villa. (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

However, with respect to Cross-Defendant Gomez, the Court finds that the Cross-Complaint is not sufficiently pled. The Cross-Complaint asserts a claim for resulting trust against Gomez, but he contributed money towards the Property's down payment and paid towards the monthly mortgage payments, making him a payor of the purchase price of the Property, which is a characteristic of those who a resulting trust typically arises in favor of. (Cross-Complaint, ¶¶ 11, 15, 16; *Martin v. Kehl* (1983) 145 Cal.App.3d 228, 238.) Further, the Cross-Complaint does not allege that there was no intent for Gomez to hold any legal, equitable, or beneficial interest in the Property. Thus, neither prong required for a resulting trust is satisfied as to Gomez and the cause of action for resulting trust against him is not sufficiently pleaded.

Ruling

Cross-Defendants' demurrer to the Cross-Complaint's claim for imposition of a resulting trust is **OVERRULED** as to Cross-Defendants Cuevas and Villa and is **SUSTAINED** as to Cross-Defendant Gomez, with leave to amend. Cross-Complainant may file and serve an amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

18. 9:00 AM CASE NUMBER: C25-03757

CASE NAME: CATHAY BANK, VS. CHRISTINA SEELYE

HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER, ISSUANCE OF WRIT AFTER HEARING AS TO CHRISTINA SEELYE

FILED BY: CATHAY BANK

TENTATIVE RULING:

Plaintiff Cathay Bank's Application for a Writ of Attachment and Right to Attach Order is **granted**. The